

		The parties should be prepared to discuss how best to proceed under the circumstances.
12	Holtkamp vs. Anaheim Police Department	<u>Motion to Dismiss</u> (Case Management Conference) 1. Motion to Dismiss The court GRANTS Defendant ANAHEIM POLICE DEPARTMENT's motion to dismiss. The motion is meritorious. Plaintiff did not amend after the defendant successfully demurred to the entire original complaint. As such, there is no current pleading in this action. A court may dismiss a case "after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal." (Code Civ. Proc., § 581(f)(2); see also Cal. Rules of Ct, rule 3.1320(h) [when the time to amend after a sustained demurrer has expired, "the court may dismiss the action as to the defendant in whose favor the demurrer was sustained."].) After a first amended complaint, a plaintiff "no longer [has] an unfettered right to file an amended complaint." (<i>Leader v. Health Industries of America, Inc.</i> (2001) 89 Cal.App.4th 603, 612.) A court has the authority to strike pleadings "not filed in conformity with its prior ruling." (<i>Id.</i> at 613.) A "plaintiff's failure to file an amended complaint within the time allowed by the court subject[s] any subsequently filed pleading to a motion to strike..." (<i>Id.</i>) As such, a trial court may strike an amended complaint "filed in disregard of established procedural processes," and may strike an amended pleading "because no request for permission to amend was sought." (<i>Id.</i>) Here, the court sustained defendant's demurrer to the entire Complaint on 3/27/26, giving Plaintiff 20 days leave